

EARLY MODERN WORKSHOP: Jewish History Resources

Volume 22: Cultures of Food

Monday, August 18 and Tuesday, August 19, 2025

The Cheese and the Words: Dairy Worlds and Regulatory Words in a 17th Century Italian Rabbinic Document

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This anonymous document appears as an addendum to a manuscript containing a halakhic compilation from the final third of the 17th century, written in the Reggio area. A closer look at how this compilation was created and edited – surviving in several versions that reflect different stages of development – could shed light on broader questions concerning rabbinic culture and shifting intellectual paradigms. It also connects to several of the innovative elements in this specific text. Although that broader inquiry lies beyond the scope of this discussion, I suggest that the text was likely authored by the compiler of the manuscript's main halakhic collection, probably R. Immanuel Sonnino (d. 1707), a schoolteacher (*melamed tinokot*) in Reggio. The manuscript in which this ruling appears is likely the earliest version of the compilation, dating from the 1660s–1680s.

The text addresses the consumption of cheese produced by non-Jews – a practice observed among Italian Jews despite rabbinic prohibitions. Since the medieval period, Italian Jewish communities were known for their relative leniency on this issue, a fact often cited when authorities sought to impose more stringent rulings. The present text reflects another such attempt, with the author seeking to reinforce it through additional halakhic support.

This document reflects more than a typical case of rabbinic intervention in popular leniency. Although it appears at first (and perhaps even second) glance to be a classic halakhic discussion, a closer reading reveals that the author draws on recently developed intellectual paradigms and practical tools designed to navigate halakhic uncertainty – particularly the proliferation of disagreements among post-Talmudic authorities – and to facilitate legal determination. These simplified methods, which had emerged only a few years earlier, result in avoiding complex Talmudic argumentation in favor of more accessible reasoning and standardized principles.

This shift raises broader questions about the simplification and standardization of halakhic discourse, its implications, and the possibilities such paradigms enable. Especially pertinent in our case is how these tools affect rabbinic authority and who is positioned to use them. How did the abstraction of legal argument affect who could participate in halakhic discourse? How did the “neutralization” of discourse help overcome entrenched customs? And what does this reveal about the evolving dynamics of rabbinic and communal authority?

This text also highlights the links between these intellectual arenas and the contexts of food and its cultural weight. What made food so symbolically and institutionally charged, and why did it emerge as a key arena for negotiating religious norms and authority in early modern Jewish communities? And further: what are the possibilities – and limits – of the reasoning and methods employed here to defuse the cultural tensions surrounding food and foodways?

Suggested further reading:

David Malkiel, “Gentile Wine and Italian Exceptionalism,” *Journal of Jewish Studies* 68 (2017): 346–368.

Michela Andreatta, “The Taste of Conviviality: A Poem on Food by Leon Modena,” *Jewish Quarterly Review* 105, no. 4 (2015): 456–481.

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Hebrew Union College Library, Cincinnati, Ms. 210, 124a-125b

Reading Notes:

The following text is a halakhic discussion. While not especially complex, some parts may feel dense or intricate. To support reading, I have included explanatory footnotes that highlight key points, and endnotes providing brief biographical and bibliographical information on the (numerous) rabbinic figures mentioned in the text.

In addition, for ease of navigation, I suggest dividing the text into three main sections. **The first section** focuses on communal and rabbinic authority to enact binding regulations. The author cites several well-known sources that are frequently invoked in support of this principle.

The second section (beginning at line 22) shifts to the core subject: the consumption of cheese produced by non-Jews. Here, the author presents a series of quotations from halakhic authorities who unanimously argue that such cheese is prohibited, with no valid grounds for leniency. It is worth noting which sources are cited and where they appear.

In my view, both of these sections can be skimmed relatively quickly if needed.

The third section (beginning at line 39) is, I believe, the most noteworthy. The author once again cites earlier sources, this time not regarding the prohibition itself, but rather concerning broader methodological and systematic approaches – or “rules” – for halakhic decision-making: how to rule in cases of post-Talmudic dispute, and how to assess seemingly halakhic rulings found in certain texts. As in the previous sections, the author offers only citations from

previous texts, without extended analysis or new argumentation. Again, it is interesting to consider which sources he chooses to utilize.

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The form of the signature that I signed on the ruling regarding cheeses made from milk that was milked by a non-Jew, without a Jew observing

To strengthen the fellows I have come forward, and I was gladdened to see holy and elder rabbis who gathered as a group to establish a fine ordinance and issue a prohibition. I said of their action: it is praiseworthy; may their strength be upright; and let not the blessing of a layman be light in their eyes.¹

“And these [word] add upon the earlier ones.”² The *Mordekhai*,³ at the beginning of the second chapter of *Bava Metzia*, cites in the name of a responsum of Rabbeinu Gershom,⁴ and it is brought by the author of *Me’irat Einayim*⁵ 2:10, as follows: “Anyone who is appointed over the community is as

¹ Based on Babylonian Talmud, *Megillah* 15a.

² "ואלה מוסיף על הראשונים". A common phrase derived from *Shemot Rabbah* 2:1 (and Rashi on Exodus 21:1): “Wherever it says ‘These are (אלה)’ – it comes to exclude what came before; ‘And these are (ואלה)’ – it comes to add to what came before.” Here, the author is emphasizing that he is not rejecting what his predecessors have said but rather aims to strengthen them and join with their words.

³ **Mordekhai**. An extensive and renowned medieval halakhic compilation organized according to the order of the Talmud, authored by R. Mordekhai b. Hillel, Germany (d. 1298).

⁴ **Rabbeinu Gershom**. R. Gershom b. Judah, Germany (c. 960–1040). One of the prominent rabbinic figures of the (relatively) early Ashkenazic period.

⁵ **Me’irat Einayim / Derisha u-Perisha**. R. Joshua Falk, Poland (d. 1614). Author of *Sefer Me’irat Einayim* on *Shulḥan Arukh*, *Hoshen Mishpat*, and of *Derisha u-Perisha* on the *Arba’a Turim*.

mighty as the mightiest, and ‘Yiftach in his generation [= is like Samuel in his generation]’.⁶ And whatever he does is valid.” Similarly, *Rashba*⁷ writes in responsum 729 that every community in its locale is like the Geonim⁸ for all of Israel, who enacted many ordinances for all of Israel. Therefore, every wise person – let him mightily uphold and support their ordinance and their decree. [That is] even if they ruled to prohibit what is otherwise permitted. All the more so – and how much more so – regarding those holy rabbis, who only issued a decree regarding what is [already] prohibited, as is clear from all the evidence and halakhic authorities. And also, since in all the regions of Italy, where they tend to be more lenient, [still] their custom aligns with their [ruling].⁹

And this is similar to what *HaRav HaMashbir* (=the “Provider Rabbi”)¹⁰ wrote in Section 125, about those who eat cheeses of gentiles that are curdled with flowers,¹¹ as follows: “All the more so in a case where Maimonides¹² and the *Rashba* prohibit it, for they are pillars of the world. And furthermore, in all

⁶ “Yiftach in his generation is like Samuel in his generation” (*Rosh Hashanah* 25a) became one of the most frequently invoked justifications in medieval rabbinic literature for attributing authority to local rabbinic figures or communities to enact regulations across various domains.

⁷ **Rahsba**. R. Solomon b. Abraham ibn Aderet, Catalonia (1235–1310). A preeminent and highly influential halakhist and Talmudist, best known for his Talmudic commentary and his voluminous responsa.

⁸ **Geonim**. The common title for Babylonian Talmudic scholars (especially the heads of the two leading academies), active roughly between 700 and 1000 CE.

⁹ The syntax and intent of this sentence are somewhat unclear. Most simply, the author appears to be noting that even in the regions of Italy, which he sees as generally lenient in many areas of halakhah, these cheeses are nonetheless customarily prohibited. The issue here is not that this contradicts other evidence (since rhetorical claims of this kind are not always meant to reflect concrete reality), but rather that if this indeed *is* the prevailing custom, what then is the need for a new decree or ordinance?

¹⁰ **HaRav HaMashbir** (“the Provider/Supplier Rabbi”; cf. Genesis 42:6). An epithet for R. Joseph Karo, particularly in reference to his *Beit Yosef*, seen as a central and comprehensive resource for scholars. R. Joseph Karo (1488–1575), Iberia–Balkans–Safed, was a preeminent halakhist known primarily for *Beit Yosef* (a compilation and commentary on the *Arba‘a Turim*) and *Shulḥan Arukh*, the most influential halakhic text of the past millennium.

¹¹ “With flowers” – that’s how the discussion is framed in rabbinic literature. Cheese prepared with animal-derived enzymes from non-kosher sources is prohibited for consumption; the debate concerns cheeses curdled using a plant-based agent, referred to as “flowers.” This is the case where some adopted a lenient stance, which the author seeks to challenge.

¹² **Maimonides**. R. Moshe b. Maimon (Rambam), Spain–Egypt (1138–1204). One of the most celebrated halakhists and philosophers in Jewish history.

the places of Israel of which I have heard, the practice is to prohibit it”; and such is the ruling in our case.

And the reason is that this is a matter that was prohibited by a formal vote, and requires another vote to permit it,¹³ as appears in the first chapter of [tractate] *Yom Tov*. So wrote *Harav HaMaggid*¹⁴ in chapter 3 of the Laws of Forbidden Foods. And so wrote the author of *Lehem Mishneh*,¹⁵ as follows: “In our times, where no one in that certain place would curdle with a prohibited object, as it is known that [the people of that place] would certainly abhor non kosher milk, still, since it was prohibited by a formal vote, a new vote is required to permit it.” End quote. And the author of *Derisha u-Perisha*ⁱⁱⁱ also wrote in *Derisha*, Section 7, as follows: “And since all cheeses of gentiles were prohibited, even if one finds a place where there is no reason to prohibit them, we have no authority to permit it. Such is also the view of the *Rashba*.” End quote.

From all the aforementioned halakhic authorities it is clear that cheeses made from milk milked by a non-Jew, without a Jew observing, are prohibited. And we follow the later authorities (*batrai*), even among halakhic decisors (*poskim*).¹⁶ And the author of *Siftei Kohen*¹⁷ (*Shakh*) wrote in his “*Abridged*

¹³ The prohibition against eating cheese made by non-Jews is presented by most halakhic authorities as a *gezerah* (rabbinic decree) that was enacted by a special rabbinic forum and confirmed by a vote (in some sources, it is described as an especially ancient decree, originating at the beginning of the Tannaitic period, within a unique and concrete institutional setting – the so-called “Decree of the Eighteen Matters”). According to the principle cited here, a decree enacted through such a procedure cannot be revoked without a sufficiently authoritative institutional framework and a formal vote, something that is not currently on the table.

¹⁴ **Harav HaMaggid**. R. Vidal of Tolosa, Spain, 14th century. Author of *Maggid Mishneh* on Maimonides’ *Mishneh Torah*.

¹⁵ **Lehem Mishneh**. R. Abraham De Botton, Salonika, 16th century. Author of *Lehem Mishneh* on Maimonides’ *Mishneh Torah*.

¹⁶ *Hilkhetah ke-batra’i* (“the law follows the later authority”) is a principle that prioritizes the rulings of more recent rabbinic authorities. It originates in the Geonic literature and gained increasing traction in Ashkenazic rabbinic culture, especially from the late medieval period onward, although typically not as a rigid rule, but rather as a softer guiding principle. The specific question at issue here is whether this principle applies only to classical rabbinic literature (or part of it), or whether it also extends to post-Talmudic halakhic authorities – referred to here as “in the rulings of the *poskim*.”

¹⁷ **Siftei Kohen**. R. Shabbetai HaKohen Katz (the *Shakh*), Poland–Moravia (1622–1662). Known for his influential commentary on *Shulḥan Arukh*, titled *Siftei Kohen*.

[guidelines] for Conducting Rulings in Matters of Ritual and Dietary Law”,¹⁸ no. 8: “In every case where the words of the early authorities are written in a book and are well-known, and the later decisors disagree with them, we follow the later ones.”

And the author of *Keneset HaGedolah*¹⁹ wrote, in his “Rules Concerning the Courses of Halakhic Authorities”,²⁰ no. 39, as follows: “Even among decisors, we say the law follows the later authorities (*hilkhetah ke-batrai*), even if a single authority disagrees with many; [Source:] R. Moses Alashkar,²¹ of blessed memory, 23, citing *Maharik* (R. Joseph Colon)²². So also wrote R. Jacob Smot,²³ of blessed memory; his words were cited in the Responsa of our teacher R. Yosef Karo,^{vi} of blessed memory, Part 1, Section 2, and in *Binyamin Ze’ev*,²⁴

¹⁸ Midway through R. Shabbetai Katz’s commentary on *Shulhan Arukh Yoreh De’ah*, *Sifte Kohen* (Kraków, 1646), appears an independent short unit titled *An Analytical Essay on Ruling in Matters of Ritual and Dietary Law* (פלפול בהוראת איסור והיתר). This intriguing text responds to a short earlier work and marks a shift in the formulation of principled paradigms for resolving disagreements in post-Talmudic rabbinic discourse, alongside an effort to develop simple working rules to guide (some parts of) the professional rabbinic sector. At the end of this short essay is a shorter appendix, *Abridged Guidelines for Conducting Rulings in Matters of Ritual and Dietary Law* (קיצור בהנהגת הוראות איסור והיתר), offering a numbered list of practical guidelines for halakhic decisors.

¹⁹ **Keneset HaGedolah** (hereinafter referred to as “**The Compiler Rabbi**”; הרב המאסף). R. Haim Benveniste, Smyrna (1603–1673). One of the most notable Ottoman halakhists of the 17th century. His magnum opus, *Keneset HaGedolah* (lit. “The Great Assembly” or “Great Gathering”; Livorno, 1658; second volume, *Sheyarei Keneset HaGedolah* – “Remnants” or “Supplements to the Great Assembly,” Smyrna, 1671), is a massive compilation of halakhic sources organized according to the *Arba’ah Turim*, mainly aiming to collect material written after the completion of Karo’s *Beit Yosef*.

²⁰ *Keneset HaGedolah* is a massive compilation of halakhic sources, organized according to the structure of the *Arba’ah Turim*. In addition to that division, the author sorted the rest of his materials under several subheadings or categories. Among these are “*Kelalim*” (Rules), which contains many sections, most of which follow the conventional formats of the *Talmudic Rules* (כללי התלמוד) genre. Alongside those appears a category that might seem trivial but is far from it: *Rules Concerning the Courses of Halakhic Authorities* (כללים בדרכי הפוסקים) – a collection of principles and working guidelines related to post-Talmudic halakhic authority.

²¹ **Moses Alashkar**. Spain–Jerusalem (1466–1542). Noted rabbi and halakhic authority.

²² **Maharik** (R. Joseph Colon). Savoy–Italy (c. 1420–1480). Leading 15th-century halakhist in Italy; author of *She’elot u-Teshuvot Maharik*.

²³ **R. Jacob Samut**. An Ottoman rabbi, 16th century.

²⁴ **Binyamin Ze’ev**. Benjamin b. Mattathias of Arta, Greece (c. 1475–1545). Rabbi and halakhist; best known for his responsa collection *Binyamin Ze’ev*, the first such work to be printed by its author rather than posthumously.

126. And my teacher the Rav,²⁵ of blessed memory, in Responsa Part 2, *Yoreh De'ah*, 51. And the author of *Mishpat Tzedek*,²⁶ *Hoshen Mishpat*, citing *Maharik*, of blessed memory. And R. Elijah Mizrahi (*Re'em*),²⁷ of blessed memory, in a manuscript responsum, wrote in accordance with the words of *Maharik*, of blessed memory.” So ends the words of the Compiler Rabbi.^{xi}

Moreover, the words of Rabbeinu Tam,²⁸ of blessed memory – upon whom the lenient rely²⁹ – were said as a theoretical ruling (*le-halakhah*), not for actual practice (*le-ma'aseh*),³⁰ as noted by our honored teacher, Rabbi Menashe Haim of Padua, in his ruling.³¹ And I found support for his statement – even

²⁵ **My teacher the Rav.** The cited scholar, R. Haim Benveniste, is referring to his primary teacher, R. Joseph di Trani (*Maharit*), Safed–Istanbul (1568–1639), a leading Ottoman rabbinic figure and author of *She'elot u-Teshuvot Maharit*.

²⁶ **Mishpat Zedek.** R. Meir b. Shem Tov Melamed, Turkey and Greece (d. 1627). Author of the responsa collection *Mishpat Tzedek*.

²⁷ **R. Elijah Mizrahi.** Prominent rabbi and communal leader (c. 1435–1526), known also as *Re'em*. His most notable work is a super-commentary on Rashi's Pentateuch commentary.

²⁸ **Rabbeinu Tam.** R. Jacob ben Meir, France (1100–1171). Probably the most distinguished and influential of the Tosafists.

²⁹ The most significant source cited in support of permitting cheese made by non-Jews that is curdled with plant-based rather than animal-based enzymes is found in the Tosafot on *Avodah Zarah* 35a. There it is recorded that the “Geonim of Narbonne” permitted such cheese in their locale, and – no less importantly – arguments are cited in the name of Rabbeinu Tam that likewise suggest leniency may be justified in such cases.

³⁰ The argument here is that statements appearing in the Tosafot do not constitute practical halakhic implications unless explicitly stated as such, and should otherwise be understood as theoretical analysis.

(A note for further reflection: This argument is far from self-evident and may appear counterintuitive. It is worth noting that the position – namely, that a view or suggestion found in Tosafot was intended as a theoretical explanation without practical halakhic implications – has occasionally appeared in rabbinic discourse, particularly as part of broader halakhic negotiation. Indeed, this very argument has also been applied to the statements of Rabbeinu Tam cited here, permitting cheese produced by non-Jews. For example, R. Yosef Karo made this point in his *Beit Yosef*, and he is probably the source of the formulation attributed to R. Menashe Haim of Padua – the authority cited in our text – who likewise argued that Rabbeinu Tam's statements were theoretical, and whose position was described as “built on foundations of gold.” Nonetheless, there is a significant difference between how this claim appears in those concrete halakhic contexts and the way it is formulated in our text and in the sources it cites – both conceptually and in terms of literary form, genre, and context.)

³¹ The author is likely referring here to the rabbinic ruling issued by the group of Italian scholars, with which he explicitly aligns himself; part of this ruling was apparently authored by R. Menashe Haim of Padua. R. Menashe Haim was also in contact with the circle of scholars in the Reggio area, to which the presumed author of this text also belonged. For example, we have correspondence between R. Menashe Haim and R. Binyamin ha-Kohen Vitali of Reggio (MS JTS 4021, p. 51), and he also wrote several celebratory poems for the latter's wedding.

though his words are built on foundations of gold and need no further support – in the *Rules of Halakhic Decisors* by the *Compiler Rabbi*, no. 16, as follows: “I received from my father and teacher that one should not rely in practice on the words of Tosafot³² unless they explicitly state that their words carry practical implications. And one may rely on *Piskei Tosafot* in practice.³³ And in *Tosafot Ashkenaziyot* I found: in every place where Tosafot would say a practical ruling, the scribe should mark it outside the main text; [Source:] Responsa of R. Elijah Capsali,³⁴ of blessed memory, manuscript.”

³² **Tosafot.** A collective body of Talmudic commentaries composed by multiple scholars (known also as the Tosafists), primarily in northern France and Germany, between the 12th and 14th centuries. Written mostly by the intellectual descendants of Rashi, the Tosafot critically engage with the Talmud and Rashi’s commentary, often introducing dialectical analysis and reconciling contradictions across tractates. A single version (among many) is printed alongside the Talmudic text in standard editions.

³³ *Piskei Tosafot* is a short work that aims to summarize and extract practical halakhic rulings from the Tosafot commentaries on the Talmud. The Tosafot are written in a dialectical style, with many questions, answers, and other considerations, and they usually do not state explicit rulings. This short work draws out practical conclusions from their discussions (and thus also serves as an interpretive aid to understanding the Tosafot). In general, *Piskei Tosafot* is more of a genre than a specific work: just as there were many different Tosafot collections (even though only one was eventually printed per tractate), so too, in the late medieval period, various versions of *Piskei Tosafot* circulated. From the beginning of the printing of the Talmud, a version of *Piskei Tosafot* – one of several – was included in Talmud editions, though its author is unknown.

The argument made here is that, unlike the Tosafot themselves, which are not to be taken as practical rulings, the rulings collected and redacted in *Piskei Tosafot* do have practical authority. (This argument, however, is not directly relevant to the discussion about cheese; it is simply the continuation of the quotation from *Keneset HaGedolah* that the author cited.)

³⁴ **R. Elijah Capsali.** Noted rabbi and scholar, Crete (c. 1490–1550).

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טופס החתימה שחתמתי על פסק הגבינות הנעשות מחלב שחלבו גוי ואין ישראל רואה

לאפושי גברי קא אתינא הכא, וחדנא למיחזי רבנן קדישי וקשישי דאתו בכנופיא למעבד תקנתא מעלייא ולמיזגר מילתא באיסור' [א] ואמינא לפעלי טבי, יישר חילייהו, ואל יהי ברכת הדיוט קלה בעינייהו:

ואלה מוסיף על הראשוני' [ם]. כתב המרדכי רפ"ב [=ריש פרק ב'] דב"מ [=דבבא מציעא] בשם תש' [ובת] רבינו גרשון והביאו בעל סמ"ע [=ספר מאירת עיניים] בסי' [מן] ב ס"ק [=סעיף קטן] יו"ד וז"ל [=לשונו]: כל מי שנתמנה על הצבור הוא כאביר האבירי' [ם] ויפתח בדורו וכו' וכל מה שעשה עשוי. וכ"כ [=וכן כתב] הרשב"א סי' תשכ"ט דכל צבור במקומו כגאוני' [ם] לכל ישראל שתקנו כמה תקנות לכל ישראל. ולכן כל גבר חכם בעוז יתן עוז ותעצומות לתקנתם ולגזרת' [ם], אפי' [לו] אם [?] וגזרו על היתר איסור. ק"ו [=קל וחומר] וכן בנו של ק"ו [=קל וחומר] בהני רבנן קדישי לא גזרו אלא על איסור איסור, כמוכח בכל הראיות והפוסקי' [ם]. וגם שבכל גלילות איטליה שהם מקילים יותר נוהגים כוותיהו.

ודמי למה שכתב הרב המשביר בסי' קט"ו על אותן שאוכלין מגבינות הגויים שמעמיד' [ם] אותן בפרחי' [ם] וז"ל [=לשונו]: וכ"ש [וכל שכן] במקום שהרמב"ם והרשב"א אוסרי' [ם] שהם עמודי עולם, וגם כי בכל מקומות ישראל ששמעתי שמעם נוהגי' [ם] לאסור. וכן הדין בנ"ד [=בנדון דידן]. וטעמא הוי משום דהוי דבר שנאסר במניין וצריך מניין אחר להתירו, כדאיתא בפ"ק [=בפרק קמא] די"ט [=דיום טוב]. כ"כ [כן כתב] הרב המגיד בפ"ג [=בפרק ג'] מס' [פר] מאכלות

אסורות וכ"כ בעל לחם משנה, וז"ל [וזה לשונו]: בזמן הזה שאין במקום שהוא מי שיעמיד בדבר איסור, שידוע שמאוס להם חלב טמא, מ"מ [=מכל מקום] כיון שנאסר במנין צריך מנין אחר להתירו. ע"כ [=עד כאן]. וגם בעל דרישה ופרישה כתב בדרישה סי' ז' וז"ל [וזה לשונו]: וכיון שנאסרו כל הגבינות של גויים אף בנמצא מקום שאין שום טעם לאסור בו אין בידינו להתירו וכן היא דעת הרשב"א עכ"ל [=עד כאן לשונו]:

הנה נתבאר מכל דברי הפוסקי' [ם] הנ"ל דגבינות שנעשו מחלב שחלבו גוי דאין ישראל רואהו אסור. ואנן ק"ל [=קיימא לן] כבתראי אף בפוסקי' [ם]. וכתב בעל ש"ך בקיצור הנהגת הוראות איסור והיתר שלו סי' ח': כל מקום שדברי הראשוני' [ם] כתובי' [ם] על ספר והם מפורסמים והפוסקי' [ם] האחרוני' [ם] חולקי' [ם] עליהם הולכים אחר האחרונים:

וגם בעל כה"ג [=כנסת הגדולה] כתב בכלל'ם של דרכי הפוסקי' [ם] סי' ל"ט, וז"ל [=וזה לשונו]: ואף בפוסקי' [ם] אמרינן הלכה כבתראי אפי' [לו] יחיד אצל רבים. הר"ם [=הרב משה] אלשקאר ז"ל [=זכרו לברכה] בסי' כ"ג בשם מהרי"ק. וכן כתב הר"י [=הרב יעקב] סמוט ז"ל הובאו דבריו בתשובות מהר"י [=מורנו הרב יוסף] קארו ז"ל סי' ב', ובנימין זאב סי' קכ"ו. ומורי הרב ז"ל בתש' [ובות] ח"ב [=חלק ב] חלק י"ד [=יורה דעה] סי' נ"א ובעל משפט צדק ח"מ [=חושן משפט] בשם מהרי"ק ז"ל. והרא"ם [=והרב אליהו מזרחי] ז"ל בתש' [ובת] כ"י [=כתב יד] כתב כדברי מהרי"ק ז"ל. ע"כ [=עד כאן] לשון דברי הרב המאסף:

ועוד דדברי ר"ת [=רבינו תם] ז"ל שהמקילי' [ם] סומכי' [ם] עליהם נאמרו להלכה ולא למעשה, כדברי כמהר"ר [=כבוד מורנו הרב רבי] מנשה חיים פאדואה בפסק שלו. ומצאתי סעד לדבריו אף כי דבריו מיוסדי' [ם] על אדני פז ואינם צריכי' [ם] חיזוק, בכללי הפוסקי' [ם] של הרב המאסף סי' י"ו, וז"ל [וזה לשונו]: מקובלני מפי אבא מרי שאין לסמוך למעשה על דברי התו' [ספות] אם לא שביארו בהדיא שדבריהם הלכה למעשה. ועל פסקי תו' [ספות] יש לסמוך הלכה למעשה. ובתו' [ספות] אשכנזיות מצאתי: כל מקום שיאמרו התוס' [פות] הלכה למעשה יציין הסופר מבחוץ. פסקי הר"א [=הרב אליהו] קאפסלי ז"ל בתש' [ובת] כתיבת יד:

[illegible]

אסור ויהי

ועוד נבחר ר' שלמה שחוקל: סוכה על פס
מחנה לאלה ולא למעשה ככר בחסד

חנני ת"י מאנואס בפסר שלו וחלקי סע

לכבריו אף כ' ככריו חיסג' על אנה פז ואיש

כר"ב מרגל בלא חסוסק' של יריב חתאק

ס"ז וזל חקולט חפ' אבא ח"י שחן

לסחוק למעשה על ככר יח' אל -

ל' שבאחו במג'א שגב'יסט

אלה למעשה ועל פסר

ח' י' לסחוק חלפ

למעשה ובח' י'

עשכנזי

חלקי ב

חקני ש'אחיו ח' חלפ למעשה י'ן חסוסה חתק

פסר ס'א קאפאלי זל בח' בח' י':